

Suggested citation if referencing the below information: Sanya Carley and David Konisky, 2025, "Utility Disconnections Dashboard," Energy Justice Lab.



Montana

Last updated: March 9, 2026

Covered utilities: These policies pertain to electricity customers who receive their service from an investor-owned utility in the State of Montana. Customers that receive service from a municipal utility or an electric cooperative are not covered by these policies.

MCA 69-3-102; MCA 69-3-101; MCA 35-18-104

Weather Protections

During the period of November 1 to April 1, a regulated utility company is not allowed to disconnect residential service for non-payment if the customer establishes inability to pay (as defined at Mont. Admin, R 38.5.1401(7)), if a member of the household is at least 62 years old, or if a member of the household is handicapped. The customer has to notify the utility, and provide requested documentation, prior to the disconnection.

Year-round protection applies to accounts that have been identified as meeting one of the criteria described above, when the 8 AM ambient air temperature is at or below freezing, or when the U.S. Weather Service forecasts a snowstorm or freezing temperatures within the next 24 hours.

There are no similar protections that limit disconnections during times of hot weather.

ARM 38.5.1410; ARM 38.5.1401

Medical Protections

Disconnections will be delayed for 180 days if the termination of service will aggravate an existing medical condition, which would threaten the health of a permanent resident of the customer's household. Medical certificates can be issued by licensed physicians, certified physician's assistants, advanced practice registered nurses, and registered nurses.

There is no limit on how many times this protection can be renewed, so long as the customer provides medical certification with each renewal request. If customers receive medical protections, they are required to enter into a payment agreement with their utility provider.

Medical customers with an arrearage of \$500 or more must make their payment plan payments on time, or they can face disconnection with 20 days of notice. A utility must notify the Commission of a proposed termination for a medical certificate customer at the beginning of

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the disconnection process. The Commission may delay service termination if the circumstances warrant. Under no circumstances shall disconnection proceedings occur on accounts with an arrearage of less than \$500.

ARM 38.5.1411

Other Customer Protections

No disconnections can occur for the elderly, handicapped, recipients of public assistance, or customers with an income at or below federal poverty guidelines. Elderly is defined as customers aged 62 years or older. "Handicapped" refers to a person in the customer's household has a physical or mental impairment which substantially limits his life activities. This individual is either certified as physically disabled by a licensed physician, or certified as mentally disabled by a licensed psychiatrist, registered psychologist, veterans' administration, social security administration, or local board of health.

There are no specific protections for households with children or military personnel.

ARM 38.5.1401

General Exemptions

Utilities can request an exemption from the rules for reasons of hardship.

ARM 38.5.1418

Notification Requirements

Written notification of at least 20 days is required from a utility before a customer may be disconnected. In-person or telephone notifications are required as well. However, a utility is not required to delay a disconnection if it is unable to reach a customer by a telephone call or an in-person visit.

ARM 38.5.1405

Payment Information, Delinquency, and Fee Information

The time period for customers to pay their bill is not specified. However, a bill will be considered past-due 30 days after the bill was initially issued.

There is a minimum arrearage of \$500 for medical customers before a utility may disconnect their service.

Customer may be charged fees associated with a disconnection or a reconnection.

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Utilities may provide customers with payment plans.

ARM 38.5.1401; ARM 38.5.1411; ARM 38.5.1406

Landlords and Tenants

Tenants shall receive at least 15 days of notice before a disconnection can occur, and the utility must notify the Commission before termination of electricity to a landlord customer which would affect tenants.

The commission may consider the following factors among others in its evaluation of the account: weather conditions, participation by tenants in a leased housing or rental assistance program, ill residents in the affected units, ages of unit residents, and the availability of other housing to tenants.

ARM 38.5.1405; ARM 38.5.1417

Availability of Protection Policies

Utilities and public utility commissions are required to provide information on available sources of financial assistance. Additionally, customers will be notified of available protections when they begin service or are facing disconnection. The protections shall be posted in all local business offices of the utility and shall be made available upon request to all existing customers.

ARM 38.5.1404; ARM 38.5.1406